

**MINUTES
ANNUAL GENERAL MEETING**

CARLETON CONDOMINIUM CORPORATION NO. 276

**Tuesday, May 19, 2009
(Greenboro Community Centre, 363 Lorry Greenburg Drive Ottawa, ON)**

Present: Directors: Pushkar Godbole, President
Arthur Etkin, Vice President
Carol Wu, Treasurer / Secretary

Property Manager: Stefan Novak

Recording Secretary: Heather Clark

1. Call to Order

Pushkar Godbole, President called the meeting to order at 7:00 p.m.

CARRIED

2. Confirmation of Quorum

The scrutineers verified that 25 owners in total were represented with 14 in person and 11 by proxy. Therefore after establishing a quorum, the meeting of the owners of Ottawa-Carleton Condominium Corporation No. 276 was duly constituted to continue the business of the Annual General Meeting.

3. Confirmation of Notice of Meeting

Pushkar Godbole read the notice of the meeting indicating that proper notice was given to conduct the Annual General Meeting. Mr. Godbole acknowledged that there were some irregularities on the notice, as the time and location of the meeting were not listed. This was an error and there had since been some adjustments with the Property Manager. Mr. John Cook was the Property Manager up until three weeks ago and left the employ of Condominium Management Group quite quickly. Unfortunately due to this transition, there was some confusion.

The notice did go out and the Board met to discuss the various issues. One thing discussed was whether to go ahead with the meeting. It was decided in the end to proceed with the meeting for a number of reasons, i.e. the cost to all owners for mail outs, room rental, etc. Notices were placed around the condominium and Board members walked around and provided notice of the meeting. The Board had not received any objections to proceeding. One message arrived to the President just after 5:00 p.m. this evening asking that the meeting be rescheduled in June. It was felt that this would be too late to reschedule and the decision was made to proceed with the meeting this evening.

Ms. Kellie Fauteux, #505 Sandhamn Private motioned and Ms. Natalie Fougere, #492 Sandhamn Private seconded to proceed with the meeting this evening.

CARRIED

Another homeowner noted that there had been a number of mistakes in the past and the Board should take special notice in reviewing the package before it was distributed to homeowners. The Board would take this suggestion into consideration for the next AGM.

4. Introduction of Head Table

The President, Pushkar Godbole introduced the Head Table consisting of the Board of Directors, the Property Manager, the Auditor Lionel Guindon and Recording Secretary, Heather Clark.

5. Approval of Past Minutes from the Annual General Meeting of June 3, 2008

Ms. Kellie Fauteux, #505 Sandhamn Private motioned and Mr. Glenn Fralic, #404 Sandhamn Private seconded to approve and accept the minutes from the Annual General Meeting held on June 3, 2008.

There was no discussion with regard to the minutes and therefore all homeowners present, agreed to accept the motion and carried the minutes unanimously.

CARRIED

6. Auditor's Report

The President turned the meeting over to the Corporation's Auditor, Mr. Lionel Guindon who reviewed the financial statements for the year ending December 31, 2008. Mr. Guindon presented the Auditor's Report, Balance Sheet, Statement of Operating Fund and Fund Balances, Statement of Reserve Fund and Fund Balances, Statement of Cash Flows and the Notes to the Financial Statements.

Mr. Guy Gagnon, #432 Sandhamn Private asked a question and received clarification from the Auditor.

The President noted that the cost of snow removal was significant, and the cost of approximately \$9,000 was received due to the higher volume of snow that fell the year before last (winter of 2007). It was decided that this amount would be recovered over a number of years. Some condominiums in the area have decided to go with a one-time fee (special assessment) to cover the extra expense, our condominium decided to increase the condominium fees slightly.

Ms. Kellie Fauteux, #505 Sandhamn Private asked if the new roof shingles should have been covered under the warranty. In response, Mr. Godbole noted that there were some issues encountered with the contractors who completed the roof work. The Board had noticed that the roofs had not held up as they should have, that there were some issues with the ice shield and irregularities with the inspection of the roof. The Board went back to the Engineering Company who had overseen the work and then encountered additional complications. This engineering company then provided the condominium with a bill, which was subsequently

not paid. That's where the issue was at this point in time. He reiterated that at the end of the day, it probably left us with roofs that were not completed as well as they could have been. It was not necessarily the issue of warranty of the shingles, but the supplies, poor workmanship, and an ice shield that we didn't receive.

Mr. Guy Gagnon, #432 Sandhamn Private noted that perhaps the tarpaper was the problem.

Mr. Alex Csirik, #444 Sandhamn Private asked if we had available the contracts that we tendered to the roofing company and the engineering company to determine if there were grounds to pursue this issue. Mr. Gagnon recollected that the workmanship might be 5 years with 25-year shingles and we had surpassed that time period. The membrane was on, but the tarpaper seemed to be missing. It was ultimately felt by the Board that we would not be successful in pursuing the company.

Ms. Margaret Hobart, #430 Sandhamn Private asked about the figure for shingles, could this wording be changed to indicate roof repairs that includes everything regarding roof repairs. This was the standard wording used.

Mr. Guy Gagnon, #432 Sandhamn Private moved and Mr. Alex Csirik, #444 Sandhamn Private seconded to accept the financial statements.

CARRIED

7. Appointment of Auditor

Mr. Alex Csirik, #444 Sandhamn Private motioned and Mr. Guy Gagnon, #432 Sandhamn Private seconded to appoint Mr. Lionel Guindon as Auditor for the fiscal year January 1, 2009 to December 31, 2010. There were no homeowners opposed to the motion, no abstentions; the motion was therefore carried unanimously.

CARRIED

8. Vote on New / Updated By-laws and Miscellaneous Discussion

- It was noted by the President that we did not have sufficient representation to make any changes to the bylaws
 - to increase the number of people on the Board of Directors from 3 – 5, and to extend the Board term to 2 years. Changing or staggering the terms of the Board members was considered so the whole board wasn't changed at once
 - to update the role of the insurance deductibles for the condominium versus the individual unit owners
- A future Board will attempt to resolve these issues.
- The deductible for the Corporation had been increased to \$5,000. It was noted that the insurance was designed to cover major issues in the condominium such as fires etc. of the common elements.
- Ms. Margaret Hobart, #430 Sandhamn Private said that her insurance agent told her she only needed to cover contents. It was clarified that in fact the insurance would only cover standard contents while any improvements would not be covered. If any improvements or changes were made to the contents that would be the responsibility of

the homeowner to cover those costs. The insurance company would investigate and determine what was standard contents or originally in place and only cover that part.

- Mr. Guy Gagnon, #432 Sandhamn Private was not clear on what would be covered.
- Ms. Carol Wu, #452 Sandhamn Private explained that if something happened such as a fire and the owner was deemed at fault then the owner would be responsible for part of the payment of the deductible. This would help to lower the total cost of the insurance for the condominium.
- Ms. Margaret Hobart, #430 Sandhamn Private asked who would determine fault. This would be determined by the Fire Marshall.
- Anything inside the unit from the studs in was the responsibility of the homeowner; anything outside (the bricks and mortar) was considered common element and therefore the responsibility of the condominium.
- It was noted that inside improvements that didn't include structural changes did not need to be vetted through the Board of Directors. Any structural changes needed to be provided to the Board of Directors for approval before any work were to be completed. Any outside changes to common elements needed to be vetted through the Board of Directors first for approval before any work were to be started. Maintenance of these outside changes were then the responsibility of the homeowner.
- Ms. Gloria Anderson, #497 Sandhamn Private asked if there was a deck added on before she bought the home, was she responsible for the deck? Yes she was.
- Some deck work was started this past year, but not completed. One reason was that the Board wanted to review the Reserve Fund Study before too much maintenance was completed.

9. Reserve Fund Study

- Mr. Pushkar Godbole presented the reserve fund study just recently completed for the condominium.
- A Reserve Fund Study was required every three years, and the study was due this past year.
- The Board considered using another company and decided on using Affiliated Appraisers. Personally the Board was not quite totally satisfied with the results and they might consider going back to an engineering company in the future.
- From the study it was deemed important that the fees be increased to accommodate future maintenance. Effectively we would have to have enough money in the next 5 years to support maintenance costs. The study suggested that we needed to increase our reserve fund contribution.
- It was noted that there had been some discussion regarding the possibility of implementation of a special assessment to cover additional costs.
- It was reiterated that condominium fees pay for water, road maintenance, lawn care, and reserve fund contributions for future expenditures.
- The study recommended a 15% increase and noted that we had a legal obligation to fund this reserve fund study.
- In this obligation we needed to look at different ways of increasing this fund. By the following:

- a special assessment (draw back was it could be a large amount of money required at one time – advantage was that you didn’t need a long term increase to condominium fees).
- an increase in monthly condominium fee (less painful to deal with but draw back was that condominium fees could seem to be high should you want to sell your condominium which could be a turn-off for potential buyer(s)).
- It was stated that \$1.00 a month provides about a \$10,000 increase per year for the condominium.
- Ms. Betty Flack, #453 Sandhamn Private asked what the special assessment could be? It perhaps could be \$800 or \$900 per unit per year for the next 5 years. This could either be a single special assessment or a blended increase (special assessment or increase to monthly fees). The Board of Directors agreed to confirm this number and inform homeowners.
- The President noted that we would have another reserve fund study in the next 3 years but the requirement was to be self-sustaining in the next 5 years.
- Mr. Alex Csirik, #444 Sandhamn Private, noted that he hadn’t heard anything about reduction in expenses. He questioned whether we needed to pay for additional security, water savings, and condominium management fees.
 - Security consisted of a drive through and some walking patrols. It was an extra presence in addition to the police. Some homeowners indicated that they had never seen the security patrols. They were usually conducted around 1:00 am or 5:00 am.
 - Water could be conserved; the cost to install individual water meters didn’t seem to provide a big difference, and we needed to encourage water conservation. Past Boards had looked into this suggestion and it was advised that it would be more expensive to install the meters than what was returned.
 - Changing or doing without a management company? The President advised against this due to a number of reasons. We would need people to put in time and effort in the work. It was difficult to expect that owners would volunteer to put in the time and effort in ensuring that the Condominium Act requirements were fulfilled.
 - It was noted that as well, there were legal liabilities associated with the Condominium Act when homeowners managed the day-to-day issues.
 - We should attempt to be more eco-friendly.
 - Good feedback for the next Board to see where they could cut costs and how much discretionary spending actually existed.
 - Another expectation was that if you cut costs, then you were cutting things that homeowners received. Would homeowners be happy with the loss of something?
 - Could the summer maintenance contract be looked at and could there be savings realized there? Any such issues should be addressed to the Property Manager and he would talk to the various contractors.
 - Low efficient toilets were suggested, but you needed to ensure that you didn’t get problems with the sewer pipes.
- Ms. Emily Blinn, #417 Sandhamn Private noted that there had been three increases to the condominium fees in the past. She wanted to see the figures clearly and wanted to be properly prepared. She wouldn’t have minded spending \$115 for the extra snow removal etc. Was it cheaper in the long run to pay upfront rather than slowly? Would the condominium’s investments help in increasing the amount?

- The Board will develop a few options and send them out to homeowners in order to receive feedback. The minutes of tonight's AGM meeting will also be included.
- A homeowner noted that this could potentially be detrimental for any new buyers coming to our condominium.
- A homeowner asked about the two other neighbouring communities and asked how they were doing? It was reported that they have had three different special assessments.
- Ms. Joslyn Thompson, #410 Sandhamn Private asked if we were going to upgrade the front and garage doors? In year 11 – we're presently in year 2?
- It was noted that decks could be a safety issue as well and they had to be maintained. Some decks had separated from the actual buildings and were in need of repair.
- A homeowner noted that a deck was repaired and was actually in worse shape then before it was repaired.

10. President's Report

- Mr. Godbole presented his President's report and provided a brief background on the responsibilities of the Board of Directors and homeowners in the condominium. He also noted the responsibilities of living in a condominium and on a "Private" road.
- A property management company was hired for the last 7 years (Condominium Management Group) to take over the day-to-day issues required in the condominium. Some issues included lawn maintenance, snow removal, garbage removal to name a few.
- He reiterated that issues to be raised this evening should be relevant to the whole condominium and not individual residents.
- He highlighted a number of issues that had occurred in the past year.
 - There were some concerns raised with the past Property Manager and a survey to homeowners was completed. It was deemed appropriate that the Manager be changed. That was when John Cook came into the operation of the condominium and served the Board for approximately 2-3 months.
 - The role of the Property Manager sometimes meant saying no to people and could be quite difficult at times and the approach that was taken when dealing with homeowners needed to be changed.
 - The Board of Directors is now happy to report that Mr. Stefan Novak is the current Property Manager.
 - A reserve fund study was completed to look at the lifecycle issues associated with the infrastructure of the condominium and how to fund the expenditures over the long-term.
 - The Board was a bit conservative on the work completed last year due to the reserve fund study, the age of the condominium and some elements of the infrastructure that were coming to their age.
 - One thing missing from the AGM package was the information for the election of the Board of Directors. Mr. Godbole voiced his desire to step down from the Board, although Ms. Wu and Mr. Etkin would like to continue participating on the Board.
 - The bylaw change could not be voted on as there were not sufficient numbers of homeowners present.
 - Ms. Emily Blinn, #417 Sandhamn Private asked if there was any other way of making changes to the bylaw without having a meeting of the 50% + 1 owners. No, the only way to pass a change to by-laws was to have a meeting. The rules and regulations

could be changed via a mail out, but changes to the bylaws needed to be done via a meeting sufficiently attended.

- Mr. Jean Pierre Bazinet, #419 Sandhamn Private asked if the Board could elect two alternates for the Board without needing to change the bylaw. The Board of Directors only had the power to appoint a Board member should a member leave and a position was vacant during the term.
- Ms. Gloria Anderson, #497 Sandhamn Private asked the name of the Property Manager. It is Stefan Novak.
- A few years ago Response Security was hired to do security patrols and we suspended the parking notices. The patrols were still continuing, but the Board had asked for feedback from the present homeowners. If they wanted to share any feedback regarding the security for the condominium they were quite welcome to.
- Stefan Novak raised the issue of a onsite handyperson and if anyone was interested in helping out around the condominium to please advise the Property Manager. There could be some reasonable amount of compensation to get some minor items done around the condominium. The Board would consider this to get a number of small jobs completed around the condominium.
- Ms. Betty Flack, #453 Sandhamn Private suggested that it be mandatory that all outside lighting be left on after dark. Due to the fact that we didn't have street lighting it could be very dark in the evening and this would be beneficial in the community. The President noted that motion detector lights could be used and the low energy light bulbs as well.
- The President requested that homeowners and tenants not feed any animals in the area, as this would deter any unwanted animals (squirrels, skunks, etc.) from coming into the community.
- Ms. Betty Flack, #453 Sandhamn Private requested that any notes provided to the Property Manager or Board of Directors be responded to with an acknowledgement. This was noted and would be completed by the Property Manager. E-mail was also suggested as a means of communication between the homeowners, the Property Manager and/or the Board of Directors.
- Ms. Margaret Hobart, #430 Sandhamn Private noted that she went downtown and was unable to see Mr. Fred Buck a past Property Manager. She had not necessarily made an appointment at the time, but he obviously was not very willing to see her. It was suggested that to avoid any future problems, homeowners should schedule appointments first.

Ms. Betty Flack, #453 Sandhamn Private motioned and Ms. Emily Blinn, #417 Sandhamn Private seconded accepting the President's report.

CARRIED

11. Election of Officers

It was noted that once a month the Board of Directors met as well as communicated via e-mail on a regular basis to discuss and give direction to the Property Manager in order that he could attend to the day to day duties of the condominium.

Mr. Pushkar Godbole, #428 Sandhamn Private nominated Arthur Etkin, seconded by Mr. Alex Csirik, #444 Sandhamn Private to remain on the Board of Directors.

Mr. Pushkar Godbole, #428 Sandhamn Private nominated Carol Wu, seconded by Ms. Betty Flack, #453 Sandhamn Private to remain on the Board of Directors.

Ms. Carol Wu, #452 Sandhamn Private nominated Mr. Alex Csirik, Ms. Margaret Hobart, #430 Sandhamn Private seconded.

Mr. Jean Pierre Bazinet, #419 Sandhamn Private nominated Ms. Emily Blinn #417 Sandhamn Private as an alternate member of the Board of Directors.

Mr. Fritz Wichser motioned and Ms. Kellie Fauteux seconded that by acclimation Arthur Etkin, Carol Wu and Alex Csirik be awarded members of the Board of Directors.

Mr. Alex Csirik, #444 Sandhamn Private noted that actual ballots should be provided and a true vote be placed.

There were no homeowners opposed to the motion, no abstentions; the motion was therefore carried unanimously.

CARRIED

12. New Business and Questions

- Mr. Fritz Wichser, #501 Sandhamn Private asked about patio doors and noted that he was getting snow in his unit. He didn't want to wait until 2017 to get a new patio door. Could he replace it himself? He was willing to pay for this himself and possibly be reimbursed in the future when other doors were changed.
- The weather stripping was in poor condition and he was getting ice on the inside. It was noted that we might do some maintenance before a large amount of doors were changed.
- There were different possibilities that could be raised when it came to changing large expenditures such as windows, doors, patio doors etc. Although consistency was important in a condominium.
- Mr. Pushkar Godbole noted that regular maintenance came out of operating expenses and not the reserve fund.
- Mr. Guy Gagnon #432 Sandhamn Private noted that these items might be brought forward for the next reserve fund study.
- Ms. Emily Blinn, #417 Sandhamn Private noted that the President wasn't particularly happy with the result of the reserve fund study; could we not commission another study? We would need to do another one in the next 3 years. Mr. Godbole stated that his issue was really regarding the funding portion of the study.
- Mr. Alex Csirik, #444 Sandhamn Private asked what the critical time for this special assessment was. The President noted that basically the funds for this calendar year had to increase between now and December, the sooner the better.
- Mr. Guy Gagnon, #432 Sandhamn Private questioned whether the increases just pertained to the next 3 years when the next reserve fund study needed to be completed.

The condominium provided them with what they wanted for the next 3 years and then looked at the following 3 years at that point in time.

- It was reiterated that the Condominium Act was legally binding to us at this point in time and was a very important document when running a condominium.

13. Termination of Meeting

There being no further general discussion and no further business to conduct, Ms. Emily Blinn, #417 Sandhamn Private motioned and Ms. Betty Flack, #453 Sandhamn Private seconded to terminate the Annual General Meeting of Carleton Condominium Corporation No. 276 at 9:44 p.m.

Heather Clark